

25STCV24127 25STCV24127

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25STCV24127

JEANETTE FRANCE V. CITY OF LOS ANGELES

Tuesday August

11, 2026

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION TO VACATE VEXATIOUS LITIGANT ORDER OF 05/06/2025 AND MOTION FOR RELIEF UNDER CODE OF CIVIL PROCEDURE § 473(B).

I.

BACKGROUND

The

lead matter is BC719459 Jeanette France v. Los Angeles Department of Water and Power, which alleged discrimination and related claims in violation of the Fair Employment and Housing Act. The lead matter ended in judgment entered on December 17, 2019, in favor of Defendant after the Court granted Defendant's Motion for Summary Judgment.

In

the related matter 25STCV24127 filed August 18, 2025, the complaint alleges that Plaintiff sustained a work-related injury on January 9, 2017, for which Plaintiff filed a worker's compensation claim. Defendant terminated Plaintiff's employment in retaliation while she was on approved worker's compensation leave. Plaintiff alleges eleven causes of action for violation of the Fair Employment and Housing Act and related employment claims.

On

May 6, 2026, the Court granted Defendant's motion to deem Plaintiff a vexatious litigant and required a prefiling order before Plaintiff could commence new litigation.

Plaintiff

now moves to vacate that order on grounds Plaintiff does not meet the statutory criteria for designation as a vexation litigant under Code Civ. Procedure § 391(b)(1). Cases that are on appeal have not been decided against Plaintiff and should not have been counted.

Defendant

argues that the Court relied on Code Civ. Procedure § 391 (b)(2) and (b)(3). The finality of Plaintiff's appeal is irrelevant.

II.

DISCUSSION

The

Court's file reflects that a Motion to Sever, bearing Res. No. 6202, was scheduled for August 11, 2026. That reservation number refers to Plaintiff's motion to vacate the vexatious litigant order. The Court's file does not reflect that any party has filed a Motion to Sever.

Plaintiff's

motion argues that she does not fit the statutory requirements for a vexatious litigant under Code Civ. Proc., § 391 (b)(1) which states that a person is a vexatious litigant if in the preceding seven-year period, the person commenced or maintained at least five litigations finally determined to be adverse to that person. (Id.)

The

Court did not rely on that subpart in its order. Rather, the Court relied on Civil Procedure § 391(b)(2) and (3) which provides other circumstances where a person is deemed a vexatious litigant. (M.O. 5.6.26.)

III.

CONCLUSION

Accordingly,

Plaintiff's motion is DENIED.